

Blue Ember's Notice of Appeal

Filed January 12, 2026

United States District Court for the Western District of North Carolina Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. Civil Action No. SYN-WDNC-24-CV-0520

Blue Ember Biologics, LLC appeals to the United States Court of Appeals for the Fourth Circuit from the final amended judgment and posttrial order entered December 15, 2025. The appeal challenges the grant of judgment as a matter of law on mitigation, the resulting change from a 3.9-million-dollar judgment to 2.7 million dollars, and all rulings merged into that final disposition that are properly reviewable.

Blue Ember also seeks review of the conditional Rule 59 new-trial determination and its damages-only scope to the extent necessary under Rule 50(c). The notice does not appeal the favorable liability or causation findings, does not create a second district judgment, and does not assert that a different pre-verdict motion occurred.

The November 10 Rule 50(b) and Rule 59 motion was timely and was disposed of December 15. This January 12 notice follows within the restarted civil appeal period. Blue Ember requests transmission of the actual district record and assignment of the appellate docket through ordinary clerk procedure.

Signature and service

Maya Holt of Holt Bell PLLC signs for Blue Ember and identifies the appellant as the plaintiff and judgment holder below. Counsel requests that electronic notices be sent through the fictional filing system and certifies service on Eli Mercer and Tara Webb of Mercer Webb PLLC for Granite Heron.

The notice identifies the December 15 order and amended judgment by entry date so there is no ambiguity with the original October 15 judgment. It preserves Blue Ember's position that mitigation was not a proper Rule 50(b) ground because both Rule 50(a) motions challenged causation only. It also preserves the argument that no new trial was warranted, while recognizing the conditional ruling's consequence if JMOL is reversed.

No supersedeas request, bond application, transcript order, or appellate merits argument is decided in this notice. Those matters follow their own procedures. Fictional district clerk Avery Thorn received and docketed the filing on January 12, 2026, leaving the source record intact for certification.